

New plant export legislation commenced on 28 March 2021. The new export legislation consists of the Export Control Act 2020 and the Export Control Rules 2021.

The Export Control (Plants and Plant Products) Rules 2021 (Plant Rules) set the specific requirements for the export of plants and plant products.

The Plant Rules will be reviewed annually and amended where needed. Details of the changes will be captured on this webpage.

For information on Norfolk Island plant export legislation please visit [Norfolk Island plant export legislation](#).

The following sections contain specific resources for different plant export stakeholders.

Changes from 1 July 2023

The Accredited Grain Surveyor Assurance (AGSA) scheme commenced on 1 July 2023. The AGSA scheme was developed in collaboration with the Australasian Institute of Marine Surveyors (AIMS) and representatives of Australia's shipping and grain export industries

The AGSA scheme clarifies the qualifications required for marine surveyors to be accredited to perform bulk vessel surveys and:

- reflects the broad range of relevant training and qualifications held by marine surveyors performing bulk vessel surveys
- incorporates work experience requirements to provide greater assurance that new marine surveyors can perform surveys safely and compliantly
- minimises fraudulent practices surrounding qualification and experience requirements.

The changes do not affect the standard expected of vessels that will be loaded with Australian grain. They:

- put in place more effective checks and balances to ensure surveying practices meet the current expected standard
- minimise the risk of Australian grain becoming infested or contaminated by vessels after loading and while transiting to its final destination overseas.

For a downloadable version of the information please see the factsheet.

Download

[Factsheet - Changes affecting export bulk vessels \(PDF 314KB\)](#)

[Factsheet - Changes affecting export bulk vessels DOCX 146KB\)](#)

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- AIMS members and non-members may apply to AIMS to be accredited under the AGSA scheme.

- Accreditation must be renewed annually at a fee of \$250 per marine surveyor. When first applying, an application fee of \$150 will apply.
- The fees will facilitate assessment of applications and ongoing management of marine surveyors' accreditations by AIMS.
- Accredited marine surveyors are required to hold Professional Indemnity Insurance to a minimum amount of \$1,000,000.
- A list of accredited marine surveyors is available on the [AIMS website](#).
- Accredited marine surveyors will receive identification cards as evidence of their annual accreditation.
- Marine surveyors wishing to be accredited must apply through the AIMS website using the [Grain Surveyor Application Form](#).

Exporters and shipping companies must source marine surveyors accredited under the AGSA scheme to perform bulk vessel surveys:

- When inspecting the bulk vessel, BVI AOs will confirm marine surveyors are accredited. This must be done before the BVI AO approves the vessel for loading with grain.
- BVI AOs will not accept Marine surveyor certificates (Fitness to Load certificates) from non-accredited surveyors.
- Updated instructional material to support BVI AOs, exporters, marine surveyors and industry understand these changes are available on the [Plant Export Operations Manual](#).

Marine surveyors must hold at least one of a combination of qualification and experience options listed below:

Option	Qualification	Experience
1	Hold or have held either a:	Either:
2	Advanced Diploma of Maritime Operations (Master Unlimited)	
3	Diploma or Advanced Diploma of Maritime Surveying with the modules for dry bulk cargo and grain operations	
4	Diploma of Maritime Operations (Watchkeeper Deck) with modules for dry bulk cargo and grain operations	

When applying to AIMS for the AGSA scheme, applicants must provide the following evidence:

Qualification requirement evidence	Experience requirement evidence
Certified copy of your qualification (see one of four options listed under 'Qualification and experience requirements for accreditation').	Provide as applicable to demonstrate the relevant experience requirement, either:

If option requires dry bulk cargo and grain operation modules, also provide a copy of your transcript showing completion of the relevant modules.

Initial accreditation

In addition to demonstrating necessary qualification and experience requirements, to be accredited, marine surveyors must also have performed at least 10 bulk vessel surveys within no less than 2 months and no more than 2 years. They must have been accompanied by another accredited marine surveyor (or a person who was a qualified marine surveyor prior to the AGSA scheme commencing).

If these 10 supervised surveys were completed more than 3 years ago, marine surveyors will also need to provide evidence they have performed at least 3 bulk vessel surveys in the most recent 3-year period.

Maintaining accreditation

To maintain accreditation, marine surveyors must continue to perform at least 3 bulk vessel surveys every 3 years. You must provide this evidence of your attendance at these surveys:

- your name as an attending surveyor listed on the Fitness to Load (FTL) Certificate that is provided to the authorised officer at the completion of the survey, or
- submission of a separate listing of your ship surveys, which must include:
 - date
 - ship's name
 - grain type
 - port of survey
 - attending FTL Surveyors name and signature
 - master's signature and ships stamp.

Other minor changes

We have made changes to how official marks for plants and plant products are applied under the Plant Rules. We are proposing to include dimensions for different sized 'Australia Approved' official marks.

We are also proposing that the Plant Rules allow 'Approved for Export' official marks be used on any package where one must be applied, regardless of its size.

More information on this change can be found in [IAN 2023-29](#).

Note: These official marks are not required under the Plant Rules and are not used for the export of plants and plant products from Australia.

Changes from 1 January 2022

The following changes commenced on 1 January 2022:

All bulk vessel inspections (BVI) by third party authorised officers (AO) must be video recorded. Third party BVI AOs must record the inspection using video recording devices that can be worn or mounted on the face or head.

BVI AOs or their employers are responsible for acquiring the:

- video recording device/s, which must record at a minimum of 540p (960 x 540 pixels) at 25 frames per second (fps), with a minimum recording bit rate of 6 Mbps. We recommend sourcing recording devices with a bit rate of no more than 20 Mbps. Devices that record at higher bit rates lead to other impacts, such as greater battery usage during inspection and the need for more data storage.
- additional spare batteries
- mounts for cameras (if required)
- spare camera memory cards
- adequate storage to store video footage for at least 12 months.

All third party BVI AOs involved in the bulk vessel inspection (BVI buddies) must video record the inspection.

BVI AOs must advise the vessel owner, owner's agent and crew of the vessel that the inspection will be/is being recorded in accordance with the AO's obligations under the Plant Rules.

For audit purposes, BVI AOs or their employers are responsible for storing recorded video footage for at least 12 months.

The changes do not affect the standard expected of vessels that will be loaded with Australian grain. They:

- establish more effective checks and balances to ensure inspection practices meet the current expected standard
- minimise the risk of Australian grain becoming infested or contaminated by a vessel after loading and while transiting.

Instructional material has been updated to familiarise BVI AOs with the changes. The updated instructional material is available on the [Plant Export Operations Manual](#) website. BVI AO's must comply with the updated instructional material.

For more information on videoing empty bulk vessel inspections, please refer to the factsheet below.

Download

[Factsheet - Use of a video camera to record empty bulk vessel inspections \(PDF 283KB\)](#)

[Factsheet - Use of a video camera to record empty bulk vessel inspections \(DOCX 307KB\)](#)

If you have difficulty accessing these files, visit [web accessibility](#) for assistance.

For non-compliant bulk vessels, we have the power to direct that loading cease until action is taken to rectify the non-compliance.

This change compliments other powers in the legislation:

- to issue directions to respond to non-compliance
- to suspend bulk vessel approvals for non-compliant vessels.
- to refuse export permits and phytosanitary certificates if product is loaded into a non-compliant bulk vessel.

Simplification of management system provisions for accredited properties and registered establishments

Current management system provisions for accredited properties (APs) and registered establishments (REs) have changed in the legislation but the regulatory outcomes APs and REs must meet has not changed. The change in the legislation removes unintended regulatory and administrative burden for us and industry.

Regulatory outcomes for APs and REs include ensuring:

- importing country requirements relevant to the facility and its operations are met
- the premises are kept in a condition that ensures goods will not be infested by pests or contaminated (through effective hygiene, and waste, pest and contaminant control)
- goods can be traced from receipt, while at the premises, to the next premises (one step forward and one step back traceability).

Accredited packhouses and REs still need to have documented systems to assure us that they can meet the regulatory outcomes on an ongoing basis.

Treatment of fresh fruit and vegetables to protocol markets at a registered establishment not an accredited property

Phytosanitary treatments of fresh fruit and vegetables to protocol markets must occur at REs and not APs. The legislation has been adjusted to clarify current regulatory expectations and remove possible ambiguity.

Adjustments to Registered Establishment instructional material

We have made changes to the instructional material for RE to improve the readability of the material and reflect changes to the legislation.

The Guideline: Management of plant export registered establishments has been repealed. It has been replaced with:

- Policy: Management of plant export registered establishments (PEOM)

- Guideline: Administering applications for plant export registered establishments (departmental only)
- Guideline: Regulatory responses to plant export registered establishments (departmental only)

The content of the RE instructional material is largely unchanged, except:

- Process information for the department has been removed and incorporated into departmental instructional material.
- The new policy document clarifies that REs do not have to apply to us to vary documented systems. Variations to any documented systems may be communicated to the department at audit.
- Other minor adjustments for accuracy and clarity, such as, updates to legislative references.

For a downloadable version of this information please see the factsheet.

Download

[Factsheet - Changes affecting accredited properties and registered establishments \(PDF 258KB\)](#)

[Factsheet - Changes affecting accredited properties and registered establishments \(DOCX 301KB\)](#)

If you have difficulty accessing these files, visit [web accessibility](#) for assistance.

We have deprescribed plant-based oils including when an importing country requires phytosanitary certification. This is to reflect the way plant-based oils are currently regulated in practice.

Plant-based oil exporters can still apply for phytosanitary certification where needed to meet the requirements of importing countries such as China.

Plant-based oils are no longer being charged export tonnage charges. Overall export documentation fees and charges for the remainder of this financial year increased by \$4 from 1 January 2022.

This does not change the approach to respond to China's food safety requirements for edible oils. For more information on registering to satisfy China's food safety requirements see the latest [Industry Advice Notices](#).

For a downloadable version of the information please see the factsheet.

Download

[Factsheet - Changes affecting plant-based oils \(PDF 255KB\)](#)

[Factsheet - Changes affecting plant-based oils DOCX 299KB\)](#)

If you have difficulty accessing these files, visit [web accessibility](#) for assistance

We have made changes to reflect that log re-inspections may occur at a wharf (not just at an RE) if the logs are being or are intended to be loaded into or onto an approved bulk vessel.

New functionality has been provided in PEMS for AOs when creating a bulk into ship hold re-inspection record. The new functionality allows AOs performing bulk log re-inspections to accurately record where

the inspection is occurring: at a registered establishment or port. The manual bulk into ship hold inspection record has also been updated to reflect the changes. For more information on the changes to PEMS and manual record see the [Plant Export Operations Manual](#).

We have modernised the list of 13 prescribed grains to ensure it covers synonyms of scientific names of the listed products.

We have made other miscellaneous amendments for accuracy and clarity, such as to correct grammatical and typographical errors.

Changes from 28 March 2021

The new plant export legislation commenced on 28 March 2021. It included the following changes:

If you were an AO before 28 March 2021 when the new legislation commenced, your appointment and associated job functions will have automatically transitioned. The expiry date of your appointment has not changed.

Your updated instrument of appointment captures your existing job functions and includes the references to your relevant legislative powers under the Act and Plant Rules. Updated instruments are available through individual AO profiles in the [Plant Export Management System](#) (PEMS).

The way your powers and functions are expressed in the legislation has changed. For example, an 'export compliance inspection' is now an 'assessment of goods'. However, you must continue to follow instructional material when performing your functions. Instructional material is available on the [Plant Export Operations Manual](#) (PEOM).

Updated eLearning is available to you through Learnhub. You can undertake the new eLearning at any time, but you must complete it before your reappointment.

The regulation of AOs is covered in Part 4 of Chapter 9 of the Export Control Act 2020 and the Plant Rules.

For more information on what the new legislation means for AOs, and for your specific job function, please refer to the factsheets below and the [AOs webpage](#).

If you have difficulty accessing these files, visit [web accessibility](#) for assistance.

The process for exporters to export plants and plant products from Australia has not changed.

Exporters are responsible for ensuring their consignments meet legislative requirements and importing country requirements.

Exporters should continue to follow:

- the [Step-by-step guidelines for exporting plants and plant products](#)

- relevant instructional material on the [Plant Export Operations Manual \(PEOM\)](#) and [Certificates, declarations and forms](#) website.

Under the legislation, exporters must retain for at least 2 years:

- records relating to the export of their goods
- applications for export permits or government certificates.

Exporters should be aware that there have been changes to the process to obtain a phytosanitary certificate for re-export. Refer to the factsheet: Plant rules – exporters – new process for re-export consignments:

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[Factsheet - Exporters - new process for re-export consignments \(PDF 688KB\)](#)

[Factsheet - Exporters - new process for re-export consignments \(DOCX 299KB\)](#)

If you have difficulty accessing these files, visit [web accessibility](#) for assistance.

Keep informed

Further information can be found in the [Plant Export Operations Manual](#), and at [Improving Agricultural Export Legislation](#).

Source: <https://www.agriculture.gov.au/biosecurity-trade/export/controlled-goods/plants-plant-products/plant-export-legislation>